

Lord Hatherley observed, "there is no authority for holding that merely because a debt to the testator's estate is not called in for some time, we are to imply that the executors have ceased to be executors, and have become trustees. A debtor who has been paying interest for perhaps twenty years, does not therefore become cognizant of the fact of all the testator's estate having been administered, and of the executors having become trustees. The persons with whom the executors are dealing, are not bound to know the state of the testator's assets, and it may be many years before all his debts are paid, and his estate wound up" (*c*). In a case where there had been a lapse of *thirty-five years* from the testator's death, and no allegation of debts, the late V. C. of England held that the executor could sign a receipt (*d*), [but the rule has now been adopted that after *twenty years* it is fair to presume that the debts have been paid and the onus is upon the executors to show such is not the case (*e*).] As regards an *administrator* it will be remembered that all necessary protection is thrown around the estate by the bond taken for due administration, and also by the form of proceeding in the Probate Court; for if A., (to *whose [*482] estate the money is owing) die, leaving B. his next of kin, who afterwards dies, leaving C. his next of kin, who afterwards dies, leaving D. his next of kin, in order to take out letters of administration to A., you must first show yourself to have an interest by taking out letters to B. And again, to take out letters to B. you must first, for the same reason, take out letters to C.; so that, in fact, letters cannot be taken out to A. without previously taking out letters to B. and C. If, in such a case, the receipt of A.'s administrator, even after the lapse of twenty years, were not suffi-

(*c*) *Charlton v. Earl of Durham*, 4 L. R. Ch. App. 438; and see *Sabin v. Heape*, 27 Beav. 553.

(*d*) *Gough v. Birch*, July 10, 1839, MS.; see *Stroughill v. Anstey*, 1 De G. M. & G. 654; [*Re Tanqueray-Willaume and Landau*, 20 Ch. D. 465; *Re Molyneux and White*, 13 L. R. Ir. 382;] *Ewer v. Corbet*, 2 P. W. 148; *Court v. Jeffery*, 1 S. & S. 105; *Orrok*

v. Binney, Jac. 523; *Pierce v. Scott*, 1 Y. & C. 257; *Forbes v. Peacock*, 11 Sim. 152; *Hawkins v. Williams*, Q. B. 10 W. R. 692; *Greetham v. Colton*, 6 N. R. 311; *Williams v. Massy*, 15 Ir. Ch. Rep. 68.

[(*e*) *Re Tanqueray-Willaume and Landau*, 20 Ch. D. 465; *Re Molyneux and White*, 13 L. R. Ir. 382.]